

26VECV00438 26VECV00438

County: los-angeles

Division: Civil Law and Motion

Department: T

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Case Number: 26VECV00438 Hearing Date: September 17, 2026 Dept: T

26VECV00438 Henderson v City of LA

Plaintiff's motion to compel deposition and production of records: Denied. No sanctions.

Plaintiff's counsel is warned to follow formatting requirements of California Rules of Court. Under California Rules of Court, Rule 3.1113(f), any memorandum supporting or opposing a motion that is longer than 10 pages must include both a table of contents and a table of authorities. Defendant complied.

This motion was filed on 7/22/2026 at 2:53 pm. On July 8, 2026, the City offered August 27, 2026 for an in-person deposition. There was no response from plaintiff to this offer. On July 16, 2026, the City followed up on the August 27th date and plaintiff's counsel did not respond. Plaintiff's motion mentioned this offer for an in-person deposition but did not respond to it.

The City offered an in-person deposition for a date certain before this motion was filed. The motion was filed prematurely and is denied.

There is no trial date set on this case. There is no prejudice in the delay. Under the circumstances, given that before this motion was filed, the City gave a firm date for an in-person deposition, which apparently plaintiff's counsel did not accept, the court denies this motion.

Concerning the deposition in which defense counsel advised plaintiff's counsel that the deposition may need to be remote if she was called in for jury duty, plaintiff's counsel took that risk and if was not satisfied with that offer, should have moved the deposition.

Finally, under no circumstances would the court have granted thousands of dollars of sanctions in support of the motion. It was unreasonable for plaintiff's counsel not to accept the August 27th date for an in-person deposition given that the City offered it up twice before the motion was filed.